STANDARD OPERATING PROCEDURE			I-3500
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 10/11/16	DATE REVISED **03/03/17**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE INVESTIGATIONS	RESOURCES			
SUBJECT SUSPECT IDENTIFICATION PROCESS	CROSS REFERENCE P-4800 CRIME INVESTIGATION			

I. Purpose:

The purpose of this policy is to outline the manner in which criminal suspects will be subjected to identification proceedings.

II. Policy:

It is the policy of the Sarpy County Sheriff's Office to utilize eyewitness identification as an investigative tool. Deputies shall adhere to the procedures set forth herein, in order to maximize the reliability of identifications and gather evidence that conforms to eyewitness identification protocols.

III. Definitions:

A. Show-Up/Drive-by: The process by which a complainant or witness is driven to a suspect who has been stopped in the area of the crime for purposes of excluding or verifying the suspect as the person responsible for the crime through recognition by the complainant or the witness (see P-4800 Crime Investigation).

B. Photo-Array: An identification procedure in which an array of photographs, including a photograph of the suspected perpetrator of an offense and additional photographs of other persons not suspected of the offense, is displayed to an eyewitness for the purpose of determining whether the eyewitness identifies the suspect as the perpetrator.

C. Single Photo Verification: The process by which a complainant or witness is shown a single photograph due to the fact that they have thorough familiarity with the person who is suspected in the criminal activity and law enforcement is simply verifying that the suspect identified by the police is the same subject known to the witness.

D. Line-up: The process by which a complainant or witness is allowed to view a group of individuals, in person, for purposes of excluding or verifying the suspect as the

person responsible for the crime through recognition by the complainant or the witness.

IV. Procedure:

In all identification procedures deputies should take steps to ensure that the process is not suggestive by the manner in which it is carried out. Thus, deputies should use caution as to the manner in which suspects are presented, such that a suspect may later claim that the deputy influenced the witness' identification of the suspect. Each eyewitness who views a line-up or photo-array shall be read the Suspect Identification Form before the procedure begins and shall sign the form at the completion of the identification process.

A. The validity of identification procedures rests on the following considerations:

1. Witness' opportunity to view suspect at the time of the crime.

2. Witness' focus of attention at time of crime.

3. Accuracy of witness' description of suspect prior to identification procedure.

4. Level of certainty exhibited by the witness in making the identification.

5. The length of time that has passed between the crime and the identification.

6. Deputies should document the existence/lack of existence of these points when compiling reports on identification procedures.

B. Photo-Array/Photo-Pack:

1. The array must contain at least six photos that are selected to match the witness' description of the perpetrator and include at least some persons who are similar in appearance (e.g. facial hair, glasses, age, etc.).

2. All photos must include persons of the same race, sex, and approximate age as the suspect.

3. Photos should be presented in a way that does not suggest that the subjects in the photos are criminals (e.g. mug-shot with numbers; mug shots may be used, but portions of the photo that would indicate that photo is mug-shot should be cropped or hidden from the witness).

4. If at all possible, the deputy who conducts the photo-array shall be someone who is not aware of which photo in the array is that of the suspect in the case.

5. During the process deputies shall not, in any way, prompt the witness toward a particular photo.

6. Photos will not be shown at the same time as an array or six-pack, instead the photos will be shown from a stack, held by the presenter who shall present the photographs one at a time as if dealing a deck of cards to the witness.

7. If an independent administrator is not available, the deputy shall follow the following procedures:

a) Place the suspect photo and filler photos in separate folders.

b) Shuffle the folders before giving them to the witness.

c) The deputy administering the array should position himself or herself so that he or she cannot see inside the folders.

d) Allow the eyewitness to open the folders one at a time to view the single photograph.

8. The presentation/order of presentation must be documented. If the witness makes an identification, the deputy shall immediately ask him/her to state in his/her own words the level of confidence in the selection, which shall be documented. The witness who selects a photo as the suspect should sign and date the photo they have selected with a full signature and initial and date the other photos presented to them.

9. Witness instruction: The person viewing the photo-array should be told that the perpetrator may or may not be in the photo-array and the investigation will continue regardless of whether an identification is made or not.

10. The witness' selection of a photo that is not the suspect must be documented and included in any materials forwarded to the prosecutor who ultimately handles the case. Such evidence may be exculpatory to the suspect who is charged with the crime. As such it must be forwarded to the County Attorney.

C. **Single-Photo Verification:** This process shall only be used where the witness is thoroughly familiar with the suspect and the deputy is merely attempting to ensure that the witness and the deputy are both referring to the same person.

D. **Line-Ups:**

1. A line-up must be conducted with at least six persons who generally match the witness' description of the perpetrator and include at least some persons who are similar in appearance to the suspect (e.g. facial hair, glasses, age, etc.).

2. All persons in the line-up must be the same sex, race and approximate age as the suspect.

3. If at all possible, the deputy who conducts the line-up shall be someone who is not aware of which line-up member is the suspect in the case.

4. During the process deputies shall not, in any way, prompt the witness toward a particular subject in the line-up.

5. Present each individual one at a time to a single witness. In the case of multiple witnesses, present the lineup to each witness separately.

6. Although suspects do not have a right to refuse to stand in a line-up, a line-up should not be conducted where the suspect's resistant conduct will set him or her apart from the other participants in the line-up.

7. Suspects may be required to speak during a line-up for comparison purposes only. If deputies are going to require a suspect to speak, they must require all persons participating to speak the same words in turn.

8. Suspects may be required to put on clothing recovered from the crime for identification purposes. If deputies are going to require the suspect to put on the recovered clothing they must require all persons participating in the line-up to put on the clothing in turn.

9. All line-ups must be documented by photographing the line-up as presented to the witness. The photo will document positions of the participants as well as the inclusion of the participants.

10. If the witness makes an identification, the deputy shall immediately ask him/her to state in his/her own words the level of confidence in the selection, which should be documented.

11. Witness instruction: The person viewing the line-up should be told that the perpetrator may or may not be in the line-up and the investigation will continue regardless of whether an identification is made or not.

E. Show-Ups:

1. Document the witness's description of the perpetrator prior to conducting the show-up.

2. Use show-ups only when the suspect is detained within a reasonably short time frame following the offense.

3. Do not use single suspect show-ups if probable cause to arrest the suspect has already been established.

4. Transport the witness to the location of the suspect whenever possible, rather than bringing the suspect the witness.

5. Do not conduct show-ups when the suspect(s) are in patrol cars, handcuffed of physically restrained by law enforcement, unless necessary due to safety concerns.

6. Do not take suspects to the witness's residence, unless it is the scene of the crime.

7. Caution the witness that the person her or she is about to see, may or may not be the perpetrator.

8. Separate witnesses and do not allow communication between them before or after conducting the show-up.

9. If one witness identifies the suspect, use a line-up or array for remaining witnesses.

10. Do not present the same suspect to the same witness more than once.

11. Do not require show-up suspects to put on clothing worn by, speak words uttered by, or perform other actions of the perpetrator.

12. Deputies should scrupulously avoid words or conduct of any type that may suggest to the witness that the individual is or may be the perpetrator.

13. Ask the witness how certain he or she is of any identification that is made of the suspect. Document the exact words used by the witness without prompting the witness to elaborate.

14. Remind the witness not to talk about the show-up to other witnesses until law enforcement or prosecutors deem it permissible.

15. Record the identification process using an in-car camera or other audiovisual recording device, when available.

16. Document the time and location of the show-up, the deputies/law enforcement present, and the outcome of the procedure.

F. Attorneys:

1. A suspect does not have a right to counsel at a line-up which is conducted before the suspect has reached a "critical stage" in the justice process. A critical stage is reached when the suspect is arraigned, indicted or otherwise formally charged with a crime.

2. A suspect has the right to counsel at a line-up if the suspect has reached a critical stage in the justice process.

3. If the suspect has an attorney but has not yet reached a critical stage, deputies may consider allowing the attorney's presence at the identification proceeding. The presence of an attorney undercuts later claims that the process was somehow suggestive with respect to the suspect.